



POLICE DEPARTMENT

August 1, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202301622 (Incident Date: February 2, 2023) involving Detective Deirdre Chiarantano, Tax No. 950200 (DADS No. 2024-30224)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Detective Deirdre Chiarantano and has determined that her actions do not warrant disciplinary action.

On February 2, 2023, Detective Chiarantano was attempting to apprehend an individual who was wanted on multiple open domestic complaints. While at the location, it was alleged that Detective Chiarantano disseminated information regarding the individual's prior gun charge to two unknown neighbors. It was separately alleged that Detective Chiarantano also told the complainant to "shut the fuck up" when confronted about sharing the information. The only direct evidence in support of the dissemination allegation was that the complainant said she heard Detective Chiarantano tell the neighbors. Detective Chiarantano, however, denied this allegation and there was no available body worn camera footage capturing the interaction to prove or disprove it. Furthermore, the neighbors were unidentified and therefore they were unavailable to give statements.

Absent any corroborating evidence that Detective Chiarantano divulged confidential information regarding the individual, the burden of proof cannot be met in this case. In addition, members of the service who are involved in apprehension attempts routinely familiarize themselves with the criminal history of the people they are seeking out. Such is necessary to ensure officer safety when attempting these dangerous assignments. Therefore, CCRB's logic that there was a greater likelihood that she conveyed the information since she was aware of it, is flawed. Additionally, matters pertaining to the improper dissemination of information is outside of CCRB's jurisdiction. The NYPD's Disciplinary System Penalty Guidelines even categorizes such

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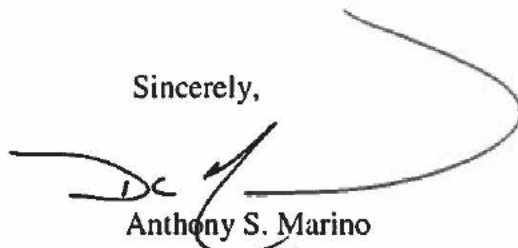
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as a violation of Department rule, rather than an Abuse of Authority, which would normally be within CCRB's jurisdiction.¹

Regarding the above mentioned allegation of discourtesy, the Police Commissioner has determined that due the lack of clarity of the audio/video evidence, coupled with the many voices and commotion in the hallway during the apprehension, it cannot be established who made the comment.

Therefore, the Police Commissioner directs that Detective Chiarantano receive no disciplinary action for the allegation of wrongful dissemination of information as well as for the allegation of discourtesy.

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a long, sweeping horizontal line extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

¹ See Page 46 of the NYPD Disciplinary System Penalty Guidelines.